

fore, the inferior judges have designation to their office from the king; but if they have from the king that they are judges, and be not God's deputies, but the king's, they could not be commanded to execute judgment for God, but for the king: (Deut. i. 17.) Moses appointed judges, but not as his deputies to judge and give sentence, as subordinate to him; for the judgment (saith he) is the Lord's, not mine. 5. If all the inferior judges in Israel were but the deputies of the king, and not immediately subordinate to God as his deputies, then could neither inferior judges be admonished nor condemned in God's word for unjust judgment, because their sentence should be neither righteous nor unrighteous judgment, but in so far as the king should approve it or disapprove it; and, indeed, that royalist, Hugo Grotius¹ saith so,—that an inferior judge can do nothing against the will of the supreme magistrate if it be so. Whenever God commandeth inferior judges to execute righteous judgment, it must have this sense, "Respect not persons in judgment, except the king command you; crush not the poor, oppress not the fatherless, except the king command you." I understand not such policy. Sure I am the Lord's commandments, rebukes and threats, oblige, in conscience, the inferior judge as the superior, as is manifest in these scriptures, Jer. v. 1; Isa. i. 17, 21; v. 7; x. 2; lix. 14; Jer. xxii. 3; Ezek. xviii. 8; Amos v. 7; Mic. iii. 9; Hab. i. 4; Lev. xix. 15; Deut. xvii. 11; i. 17; Exod. xxiii. 2.

Grotius saith,² "It is here as in a category: the middle specie is, in respect of the superior, a specie,—in respect of the inferior, a genus; so inferior magistrates in relation to those who are inferior to them and under them, are magistrates or public persons; but in relation to superior magistrates, especially the king, they are private persons, and not magistrates.

Ans.—Jehoshaphat esteemed not judges, appointed by himself, private men, 2 Chron.

xix. 6, 7, "Ye judge not for men, but for the Lord." We shall prove that under-judges are powers ordained of God: in Scotland the king can take no man's inheritance from him because he is the king; but if any man possess lands belonging to the crown, the king, by his advocate, must stand before the lord-judges of the session, and submit the matter to the laws of the land; and if the king, for property of goods, were not under a law, and were not to acknowledge judges as judges, I see not how the subjects in either kingdoms have any property. I judge it blasphemy to say, that a sentence of an inferior judge must be no sentence, though never so legal nor just, if it be contrary to the king's will, as Grotius saith.

He citeth that of Augustine: "If the consul command one thing, and the emperor another thing, you condemn not the power, but you choose to obey the highest." Peter saith, He will have us one way to be subject to the king, as to the supreme, *sine ulla exceptione*, without any exception; but to those who are sent by the king, as having their power from the king.

Arg. 1.—When the consul commandeth a thing lawful, and the king that same thing lawful, or a thing not unlawful, we are to obey the king rather than the consul. So I expone Augustine. We are not to obey the king and the consul the same way, that is, with the same degree of reverence and submission; for we owe more submission of spirit to the king than to the consul; but *magis et minus non variant speciem*, more or less varieth not the nature of things. But if the meaning be that we are not to obey the inferior judge, commanding things lawful, if the king command the contrary, this is utterly denied. But saith Grotius, "The inferior judge is but the deputy of the king, and hath all his power from him; therefore we are to obey him for the king."—*Ans.* The inferior judge may be called the deputy of the king, (where it is the king's place to make judges,) because he hath his external call from the king, and is judge *in fora soli*, in the name and authority of the king; but being once made a judge, *in foro poli*, before God, he is as essentially a judge, and in his official acts, no less immediately subjected to God than the king himself.

Arg. 2.—These powers to whom we are to yield obedience, because they are ordained of God, these are as essentially judges as

¹ Grotius de jure belli et pac. lib. 1, c. 4, Nam omnis facultas gubernandi in magistratibus, summæ potestati ita subijcitur ut quicquid contra voluntatem summæ imperantis faciant, id defectum sit ea facultate, ac proinde de pro actu privato habendum.

² Grotius ib. species intermedia, si genus respicias, est species, si speciem infra positam, est genus: ita magistratus illi, inferiorum rationem habita sunt publicæ, personæ, at superiores si considerentur, sunt privati.